

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkxwckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVtZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ANITA YUAN YUN HUANG,

Petitioner

VS.

WEN HUA YANG,

Respondent

) Case Number: FDI-16-786194

) Hearing Date: August 20, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER : CHANGE OF MODIFY DISTRIBUTION OF COMMUNITY PROPERTY
TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Anita Yuan Yun Huang and Respondent Wen Hua Yang.
- 2) On 2/15/24, the Court issued a Final Statement of Decision, which includes disposition of the jointly owned condominium located at 110 Otter Cove Terrace in San Francisco CA. The Court ordered, in pertinent part: "The condominium is assigned to Petitioner, with an equalizing payment owed by Petitioner to Respondent in the amount of \$366,000. Petitioner shall have until August 31, 2024 to arrange the financing necessary to purchase Respondent's community property share of the condominium. If she is unable to do so by that date, the condominium shall be sold, and the net proceeds split evenly between the parties after the payment of commissions, fees, taxes, and other closing costs. In the event the condominium is to be sold, Petitioner shall provide Respondent with the names of three proposed local real estate agents to act as the listing agent no later than September 21, 2024." See Final Statement of Decision and Order filed 2/15/24.

- 3) On 4/10/26, the Court entered Judgment incorporating the Final Statement of Decision filed 2/15/24.
- 4) At the prior 4/16/26 hearing, the Court denied Petitioner's Request for Order filed 3/16/26 seeking modification of the Court's Final Statement of Decision filed 2/14/24; and (b) Petitioner's Request for Order filed 3/16/26 seeking a stay of the instant proceedings pending resolution of a civil case Petitioner filed in San Mateo County. The Court determined no legal basis exists under the Family Code to modify the Court's Final Statement of Decision filed 2/15/24 or stay these proceedings. See Findings and Order After Hearing filed 5/1/26.
- 5) On 7/7/26, Petitioner filed an ex parte Request for Order seeking to vacate the Judgment entered 4/10/26 under Code of Civil Procedure section 473(b). Petitioner asserts that the Judgment should be set aside based on mistake, surprise, and excusable neglect because the Final Statement of Decision filed 2/15/24 failed to reference community debt owed on the condominium and Respondent failed to disclose community debt at trial.
- 6) On 7/7/26, the Court denied Petitioner's request for emergency relief and set the matter for regular hearing on 8/20/26.
- 7) Respondent did not file a Responsive Declaration.

B. Findings and Order

- 1) Code of Civil Procedure section 473(b) provides in relevant part: "The Court may, upon any terms as may be just, relieve a party...from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief...shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or other proceeding was taken."
- 2) As a preliminary issue, Court finds Petitioner's 7/7/26 Request for Order seeking to vacate Judgment entered 4/10/26 is timely.
- 3) In proceeding to the merits of Petitioner's 7/7/26 Request for Order seeking to vacate Judgment entered 4/10/26, the Court finds good cause to order as follows:
- 8) Petitioner's 7/7/26 Request for Order seeking to vacate Judgment entered 4/10/26 is brought based on mistake, surprise, and excusable neglect. Petitioner alleges the Final Statement of Decision filed 2/15/24 failed to reference community debt owed on the condominium and

Respondent failed to disclose community debt at trial. Petitioner references both expenses paid on the condominium and the sale of a truck used in the family business.

- 4) The Court's Statement of Decision filed 2/15/24 (which is incorporated in the Judgment entered 4/10/26), directly contradicts Petitioner's assertions. First, it explicitly addresses Watts charges and Epstein credits regarding disposition of the condominium, including evidence presented at trial of Petitioner paying the following community expenses: mortgage payments, property taxes, HOA dues, maintenance costs, and homeowner's insurance. The Court concluded that (a) Petitioner's obligation to compensate the community for her exclusive occupation and use of the condominium is completely offset by her use of the separate property funds to pay the community debts and obligations listed; and (b) the amounts she paid equaled the reasonable value of her use of the condominium (see pages 15 – 17). The Court also adjudicated Petitioner's claim to funds used to purchase trucks used in the family business, concluding her claims failed (see pages 6-7).
- 5) As such, Petitioner's request to vacate the Judgment entered 4/10/26 under Code of Civil Procedure section 473(b) is DENIED.
- 6) Moreover, the Court finds that the relief Petitioner ultimately seeks is, in effect, modification of the Final Statement of Decision filed 2/15/24 for which the Court determined there was no legal basis at the prior 4/16/26 hearing. See Findings and Order After Hearing filed 5/1/26.
- 7) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MIRANDA DEVLIN,

Petitioner

VS.

TAD DEVLIN,

Respondent

) Case Number: FDI-21-794941

) Hearing Date: August 20, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME),
CHILD SUPPORT, FAMILY COURT 3044 PRESUMPTION

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Miranda Devlin (Mother) and Respondent Tad Devlin (Father). They share two minor children: Chloe (DOB: 4/25/12) and Paige (DOB: 4/15/16).
- 2) Per the Findings and Order After Hearing (FOAH) filed 11/21/24, Mother had parenting time with the minor children every Tuesday after school until Wednesday morning drop off at school and every other weekend from Friday after school until Sunday at 5:00 PM.
- 3) On 11/27/24, the Court granted a Domestic Violence Restraining Order (DVRO) after a 6-day trial. Father is the protected party, and Mother is the restrained party. The minor children are not listed as protected parties; however, Father was awarded sole legal and sole physical custody.
- 4) On 10/8/25, Mother filed a Request for Order seeking: (a) a finding that Mother rebutted the Family Code section 3044 presumption against joint custody; (b) joint legal and physical custody; (c) modification of the parenting time orders to increase her time an extra day during the week

1 and one extra night every other weekend; (c) modification of the 2/11/25 child support orders to
2 guideline child support. Mother attached a proposed holiday schedule to her Request for Order.

3 5) On 10/8/25, Mother filed an Income and Expense Declaration.

4 6) On 11/17/25, the parties appeared for Readiness hearing. The matter was scheduled for mediation
5 with Family Court Services on 1/6/26 and regular hearing in Dept. 403 on 2/3/26.

6 7) On 11/5/25, Father filed a Responsive Declaration in opposition to Mother's Request for Order
7 asking the Court to deny Mother's requested relief. However, Father states that he is agreeable to
8 Mother having the minor children an extra weeknight (Tuesday and Wednesday night until
9 Thursday morning school drop-off) on weekends that Mother does not have parenting time.

10 8) On 11/5/25, Father filed an Income and Expense Declaration.

11 9) On 11/12/25, Mother filed a Reply Declaration reiterating her requests.

12 10) On 1/6/26, the parties attended FCS mediation but did not reach an agreement.

13 11) On 1/27/26, Mother filed a supplemental declaration in support of her position.

14 12) On 2/3/26, the parties appeared at hearing, and Father requested a long-cause (i.e., evidentiary)
15 hearing. The Court did not adopt any portion of its Tentative Ruling issued for the 2/3/26 hearing
16 and set all pending issues for long-cause hearing on 5/21/26.

17 13) On 5/6/26, Mother filed an Income and Expense Declaration.

18 14) On 5/21/26, the parties appeared at the long-cause hearing and the Court, in pertinent part: (a)
19 determined Mother rebutted the Family Code section 3044 presumption against joint custody; (b)
20 granted Mother's request for joint legal custody; (c) increased Mother's parenting time with the
21 minor children from Tuesdays pick-up afterschool to Thursday drop off at school with alternate
22 weekends; and (d) ordered the parties to attend FCS Mediation on 6/18/26. The Court made
23 additional orders, including continuing the matter to 6/30/26 for issues related to child support,
24 summer schedule, vacation schedule, and make-up time.

25 15) On 6/18/26, the parties attended FCS mediation and were able to reach a partial agreement.

26 16) At the prior 6/30/26 hearing, the Court ordered that Chloe shall attend Lowell High School for the
27 upcoming 2026-2027 school year, Paige shall attend Saint Peter and Paul Elementary and Middle
28 School through 8th grade, and all outstanding issues are continued to 7/30/26. The Court ordered
29

each party to serve supplemental declarations to detail their position on the remaining issues at least ten days before the hearing.

17) On 7/20/26, Mother filed a supplemental declaration requesting guideline child support and spousal support retroactive to 2/1/26 based on Chloe living with Mother full time and Paige being on a 2-2-5 parenting time schedule. Mother states her unemployment and increased parenting time has resulted in depletion of funds.

18) On 7/20/26, Mother filed an Income and Expense Declaration.

19) On 7/20/26, Father filed an Income and Expense Declaration.

20) At the prior 7/30/26 hearing, Father objected to Judge Pro Tem, Judith Harding hearing the matter; therefore, the matter was continued to 08/20/26.

21) On 8/7/26, Mother filed an Income and Expense Declaration.

22) On 8/10/26, Father filed supplemental declaration in opposition to Mother's request for modification of support. Father seeks enforcement of prior support orders and requests Mother be ordered to pay 50% of the school tuition costs for the minor children. Father requests the Court remind Mother not to involve the minor children in these court proceedings.

23) On 8/10/26, Mother filed a supplemental declaration reiterating her request for modification of support. It appears to the Court that Mother may have accidentally filed this supplemental declaration again on 8/11/26.

B. Findings and Order

1) Mother's request for modification of the 2/11/25 support order is GRANTED retroactive to 2/1/26 as the Court finds Mother met her burden of showing a change in circumstances warranting a modification of support given that Mother's employment status and the parties' parenting time changed. See *Marriage of Bardzik* (2008) 165 CA4th 1291, 1303-1304.

2) For the period of 2/1/26 (date on which Chloe started living with Mother fulltime) to 5/1/26 (date on which Mother's employment ended), and in accordance with" XSpouse A" attached hereto and incorporated herein, Father owes Mother \$4,240 in guideline monthly child support and \$3,824 in guideline monthly spousal support for a total monthly support order of \$7,764.

3) For the period of 5/1/26 (date on which Mother's employment ended) - 5/21/26 (date on which the Court ordered a 2-2-5 parenting time schedule), and in accordance with" XSpouse B"

1 attached hereto and incorporated herein, Father owes Mother \$5,326 in guideline monthly child
2 support and \$5,313 in guideline monthly spousal support for a total monthly support order of
3 \$10,408.

- 4 4) Effective 5/21/26 (date on which the Court ordered a 2-2-5 parenting time schedule), and in
5 accordance with “XSpouse C” attached hereto and incorporated herein, Father owes Mother
6 \$5,677 in guideline monthly child support and \$5,576 in guideline monthly spousal support for a
7 total monthly support order of \$11,003. Monthly payments shall commence on 9/1/26 and are due
8 and payable by the 1st of every month thereafter.
- 9 5) Father owes Mother \$23,292 in support arrears for the period 2/1/26 – 4/30/26 (\$7,764 x 3), plus
10 \$7,050.54 in support arrears for the period of 5/1/26 – 5/21/26 (\$335.74/day for 21 days), plus
11 \$36,555.30 in support arrears for the period of 5/21/26 – 8/31/26 (\$3,549.30 for the rest of May +
12 (11,003 x 3) for June, July, and August). This means that Father owes Mother a total of
13 \$69,897.84 in support arrears less any support Father already paid during this period. The parties
14 are ordered to meet and confer regarding the payment of arrears to account for and subtract: (a)
15 any support Father already paid during this time, and (b) any amount of support overpayment
16 Mother was previously ordered to reimburse Father. Should meet and confer efforts fail, the
17 Court will reserve jurisdiction over calculation of arrears to the time of trial.
- 18 6) The XSpouse reports are based on the parties’ respective Income and Expense Declarations
19 (Mother’s filed 5/6/26 and 7/20/26 and Father’s filed 7/20/26) and the following distinctions:
- 20 a. XSpouse A is based on Mother’s employment and 100% parenting time with Chloe and
21 28% parenting time with Paige.
 - 22 b. XSpouse B is based on Mother’s unemployment and 100% parenting time with Chloe
23 and 28% parenting time with Paige,
 - 24 c. XSpouse C is based on Mother’s 100% parenting time with Chloe and 50% parenting
25 time with Paige.
- 26 7) Father’s request that Mother be ordered to pay for 50% of the school tuition costs of both minor
27 children is DENIED as Father has been solely responsible for these costs since 2020.
- 28 8) Mother is admonished not to involve the minor children in these court proceedings.
- 29 9) The Court will prepare the Findings and Order After Hearing.

26-08-20 XSpouse A Devlin v. Devlin 794941.xsp**2026****Fixed Shares**

	Father	Mother
Number of children	1	1
Percent time with NCP	0.00%	28.00%
Filing status	HH/MLA SINGLE	
Number of exemptions	3	1
Wages and salary	30000	6200
Self employed income	0	0
Other taxable income	2562	0
TANF CS received	0	0
Other nontaxable income	0	0
New spouse income	0	0
Employee 401-k contribution	0	0
Adjustments to income	0	0
SS paid prev marriage	0	0
CS paid prev marriage	0	0
Health insurance	29	115
Other medical expenses	0	0
Property tax expenses	1435	0
Ded interest expense	0	0
Contribution deduction	0	0
Misc tax deductions	0	0
Qualified business income deduction	0	0
Required union dues	0	0
Mandatory retirement	0	0
Hardship deduction	0	0
Other GDL deductions	0	0
Child care expenses	750	0

Xspouse 2026-1-CA**Monthly Figures****2026****GUIDELINE****Nets (adjusted)**

Father	20868
Mother	4683
Total	25551
Support	
Addons	-299
Guideln CS	4240
S.Clara SS	3824
Total	7764

Proposed**Tactic 9**

CS	3843
SS	3669
Total	7512
Saving	368
Releases	-2

Monthly Figures**Cash Flow****Guideline Proposed**

Combined net spendable	25552	25920
Percent change	0%	1%

Father

Payment cost/benefit	-7764	-7592
Net spendable income	13104	13276
Change from guideline	0	172
% of combined spendable	51%	51%
% of saving over guideline	0%	47%
Total taxes	11665	11745
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	18469	18469

Mother

Payment cost/benefit	7764	7960
Net spendable income	12447	12643
Change from guideline	0	196
% of combined spendable	49%	49%
% of saving over guideline	0%	53%
Total taxes	1402	953
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	4595	4595

Father pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

Mother pays Addons

FC 4055 checking: **ON**

Per Child Information

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		36 - 64	750	0	299 Mother	4,240 Father	3,940 Father
Chloe	0000-00-00	0 - 100	375	0	158 Mother	3,712 Father	3,553 Father
Paige	0000-00-00	72 - 28	375	0	141 Mother	528 Father	387 Father

Superior Court of California
County of San Francisco

26-08-20 XSpouse B Devlin v. Devlin 794941.xsp**2026****Fixed Shares**

	Father	Mother
Number of children	1	1
Percent time with NCP	0.00%	28.00%
Filing status	HH/MLA SINGLE	
Number of exemptions	3	1
Wages and salary	30000	0
Self employed income	0	0
Other taxable income	2562	0
TANF CS received	0	0
Other nontaxable income	0	0
New spouse income	0	0
Employee 401-k contribution	0	0
Adjustments to income	0	0
SS paid prev marriage	0	0
CS paid prev marriage	0	0
Health insurance	29	750
Other medical expenses	0	0
Property tax expenses	1435	0
Ded interest expense	0	0
Contribution deduction	0	0
Misc tax deductions	0	0
Qualified business income deduction	0	0
Required union dues	0	0
Mandatory retirement	0	0
Hardship deduction	0	0
Other GDL deductions	0	0
Child care expenses	750	0

Xspouse 2026-1-CA**Monthly Figures****2026****GUIDELINE****Nets (adjusted)**

Father	20868
Mother	-750
Total	20118
Support	
Addons	-231
Guideln CS	5326
S.Clara SS	5313
Total	10408

Proposed**Tactic 9**

CS	5095
SS	5313
Total	10408
Saving	0
Releases	0

Monthly Figures**Cash Flow****Guideline Proposed**

Combined net spendable	20118	20118
Percent change	0%	0%
Father		
Payment cost/benefit	-10408	-10408
Net spendable income	10461	10461
Change from guideline	0	-0
% of combined spendable	52%	52%
% of saving over guideline	0%	0%
Total taxes	11665	11665
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	18469	18469
Mother		
Payment cost/benefit	10408	10408
Net spendable income	9658	9658
Change from guideline	0	0
% of combined spendable	48%	48%
% of saving over guideline	0%	0%
Total taxes	0	0
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	0	0

Father pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

Mother pays Addons

FC 4055 checking: **ON**

Per Child Information

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		36 - 64	750	0	231 Mother	5,326 Father	5,095 Father
Chloe	0000-00-00	0 - 100	375	0	111 Mother	3,859 Father	3,747 Father
Paige	0000-00-00	72 - 28	375	0	120 Mother	1,468 Father	1,348 Father

26-08-20 XSpouse C Devlin v. Devlin 794941.xsp**2026****Fixed Shares**

	Father	Mother
Number of children	1	1
Percent time with NCP	0.00%	49.00%
Filing status	HH/MLA SINGLE	
Number of exemptions	3	1
Wages and salary	30000	0
Self employed income	0	0
Other taxable income	2562	0
TANF CS received	0	0
Other nontaxable income	0	0
New spouse income	0	0
Employee 401-k contribution	0	0
Adjustments to income	0	0
SS paid prev marriage	0	0
CS paid prev marriage	0	0
Health insurance	29	750
Other medical expenses	0	0
Property tax expenses	1435	0
Ded interest expense	0	0
Contribution deduction	0	0
Misc tax deductions	0	0
Qualified business income deduction	0	0
Required union dues	0	0
Mandatory retirement	0	0
Hardship deduction	0	0
Other GDL deductions	0	0
Child care expenses	750	0

Xspouse 2026-1-CA**Monthly Figures****2026****GUIDELINE****Nets (adjusted)**

Father	20868
Mother	-750
Total	20118
Support	
Addons	-251
Guideln CS	5677
S.Clara SS	5576
Total	11003

Proposed**Tactic 9**

CS	5427
SS	5576
Total	11003
Saving	0
Releases	0

Monthly Figures**Cash Flow****Guideline Proposed**

Combined net spendable	20118	20118
Percent change	0%	0%
Father		
Payment cost/benefit	-11003	-11003
Net spendable income	9866	9866
Change from guideline	0	0
% of combined spendable	49%	49%
% of saving over guideline	0%	0%
Total taxes	11665	11665
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	18469	18469
Mother		
Payment cost/benefit	11003	11003
Net spendable income	10253	10253
Change from guideline	0	0
% of combined spendable	51%	51%
% of saving over guideline	0%	0%
Total taxes	0	0
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	0	0

Father pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

Mother pays Addons

FC 4055 checking: **ON**

Per Child Information

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		26 - 75	750	0	251 Mother	5,677 Father	5,427 Father
Paige	0000-00-00	51 - 49	375	0	104 Mother	1,934 Father	1,830 Father
Chloe	0000-00-00	0 - 100	375	0	147 Mother	3,743 Father	3,596 Father

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JOSE IGNACIO PEREZ BARRERA,

Petitioner

VS.

VERONICA JIMENEZ GUITRON,

Respondent

) Case Number: FDI-21-795484

) Hearing Date: August 20, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: MOTION TO BIFURCATE MARITAL STATUS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Jose Ignacio Perez Barrera (Husband) and Respondent Veronica Jimenez Guitron (Wife). There are no minor children subject to this proceeding.
- 2) On 5/29/26, Wife filed a Request for Order seeking bifurcation and termination of marital status.
- 3) Wife did not file a Proof of Service indicating that her 5/29/26 Request for Order was served on Husband.
- 4) Wife's Request for Order does not include mandatory form FL-315 (Request for Separate Trial).
- 5) Husband did not file a Responsive Declaration.
- 6) At the prior 7/14/26 hearing, the Court continued the matter to 8/20/26 for the following reasons:
 - a. Wife's 5/29/26 Request for Order was not served at least 16 Court days prior to the hearing date as required by Code of Civil Procedure section 1005(b).
 - b. Wife must file mandatory form FL-315 (Request for Separate Trial) before her Request for Order seeking bifurcation and termination of marital status can be adjudicated.

- 7) On 7/31/26, Wife filed an amended Request for Order seeking bifurcation and termination of marital status attached to which is form FL-315 (Request for Separate Trial).
- 8) Wife did not file a Proof of Service indicating that her 5/29/26 Request for Order or 7/31/26 amended Request for Order were served on Husband.
- 9) Husband did not file a Responsive Declaration.

B. Findings and Order

- 1) The Court finds that Wife's 7/31/26 amended Request for Order was not served at least 16 Court days prior to the hearing date as required by Code of Civil Procedure section 1005(b).
- 2) As such, this matter is continued to 10/15/26 at 9 AM in Department 403.
- 3) At least 16 Court days prior to the next hearing date, Wife shall serve on Husband the (a) 7/31/26 Request for Order, (b) Continuance Order contained herein, and (c) Tentative Ruling Instructions using a service method authorized by the Code of Civil Procedure (i.e., a person over the age of 18 shall mail the documents to Husband and then Wife shall file form FL-335 (Proof of Service) with the Court confirming service was effectuated).
- 4) At least 9 Court days prior to the next hearing date, Husband may file a Responsive Declaration.
- 5) At least 5 Court days prior to the next hearing date, Wife may file and serve a Reply Declaration.
- 6) Wife is encouraged to seek assistance from the ACCESS Center. Information for contacting the ACCESS Center can be found here: <https://sf.courts.ca.gov/access-legal-self-help-center>.
- 7) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ERICA PLAM,

Petitioner

VS.

ERIC HUDSON PLAM,

Respondent

) Case Number: FDI-22-796258

) Hearing Date: August 20, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: CHILD SUPPORT, RESERVED FINANCIAL ISSUES; REQUEST FOR
ORDER : TEMPORARY EMERGENCY ORDER, ORDER SHORTENING TIME; SEE #7 OTHER
ORDERS REQUESTED

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

I. Request for Order filed 1/7/26:

A. Procedural History

- 1) The parties are Petitioner Erica Plam (Mother) and Respondent Eric Hudson Plam (Father).
- 2) On 9/5/25, the Court ordered the immediate reappraisal and sale of the San Francisco property located at 1850 10th Avenue in San Francisco, California (against Mother's request to delay the sale of the home for 10 months), with additional orders regarding the sale process, expenses incurred to effectuate the sale, carrying costs, and sale proceeds. The Court reserved jurisdiction over the sale of the home. See Findings and Order After Hearing (FOAH) filed 9/5/25.
- 3) On 10/7/25, the Court issued a Final Statement of Decision, which includes disposition of the San Francisco property and the Reno property (located at 712 S. Arlington Avenue Reno, Nevada) and other orders related to property division. The Court ordered, in pertinent part:

- a. Regarding the San Francisco property, the Court ordered that the net sale proceeds of the home be divided equally between the parties minus Family Code section 2640 reimbursements. The Court also stated that expenses related to the sale of the home will be divided equally between the parties. See page 6-7.
 - b. “*Epstein* credits” are to be paid from the community. (*In re Marriage of Jefferies* (1991) 228Cal.App.3d 548.) See page 8.
 - c. The Court exercised its discretionary authority and awarded \$25,000 of *Epstein* credits to Father for “reimbursement of separate property mortgage payments, property tax payments, and home insurance for the San Francisco home post separation during the time that [Mother] had exclusive use of the residence.” The Court declined to award *Watts* charges to either party. See page 9.
 - d. Regarding the Jeep vehicle purchased in 2019, the Court declined to issue *Epstein* credits or *Watts* charges. The Court awarded proceeds of a lemon law settlement to Father and ordered Mother to repay Father \$25,201, which she received from the lemon law settlement. See page 10.
 - e. Regarding business taxes, the Court ordered Mother to pay Father \$6,000 for payment of business taxes. See page 10.
- 4) At the prior 2/17/26 hearing on Father’s 1/7/26 Ex Parte Request for Order, the Court set a review hearing on 5/19/26 stating, “The Court reserves jurisdiction over the sale of the home including division of the sale proceeds consistent with the Court’s 9/5/25 order and further order of the Court.” See FOAH filed 3/3/26.
 - 5) At the prior 3/10/26 hearing, the Court disbursed a portion of the net sale proceeds of the San Francisco property to the parties as follows: (a) \$44,230.48 to Father off the top at closing and (b) \$50,000 to each party. See FOAH filed 4/2/26.
 - 6) On 4/7/26, Judgment was entered incorporating the 10/7/25 Final Statement of Decision.
 - 7) On 4/14/26, Father filed a Request for Order seeking disbursement of funds from the net sale proceeds of the San Francisco property.
 - 8) At the prior 4/23/26 hearing, the Court ordered: (a) Father agreed to buy out Mother’s interest in the Reno property for \$170,000; (b) each party shall receive \$150,000 of the net sale proceeds of

1 the San Francisco property; (c) Father's \$150,000 distribution shall be held until Mother receives
2 the buyout payment for the Reno property; and (d) the remaining approximately \$106,632 in
3 funds from the net sale proceeds of the San Francisco property shall remain in counsel for
4 Mother's client trust account not be distributed without written agreement or further court order.
5 See 4/23/26 Minute Order.

6 9) On 5/6/26, Mother filed a Responsive Declaration in opposition to Father's 4/14/26 Request for
7 Order.

8 10) On 5/12/26, Father filed a Reply Declaration reiterating his requests related to disbursement of
9 funds from the net sale proceeds of the San Francisco property.

10 11) At the prior 5/19/26 hearing, the Court ordered:

11 a. It is undisputed that approximately \$106,632.64 of the net sale proceeds of the San
12 Francisco property remains in counsel for Mother's client trust account (i.e., Mother
13 acknowledges this amount in her 5/6/26 Responsive Declaration and Father
14 acknowledges this amount in his 5/12/26 Reply Declaration), which the Court
15 acknowledged and ordered not be distributed without written agreement or further court
16 order. See 4/23/26 Minute Order.

17 b. Based on the pleadings, the Court finds the parties do not agree on how the remaining
18 funds should be distributed; therefore, the Court finds good cause to rule of Father's
19 requests (set forth in his 4/14/26 Request for Order) and distribute the remaining net sale
20 proceeds of the San Francisco property in accordance with the Final Statement of
21 Decision issued 10/7/25 as follows:

22 c. Father's request for \$25,000 in *Epstein* credits is GRANTED, the full balance of which
23 shall be paid from the undivided funds. This leaves \$81,632.64 for equal distribution
24 between the parties ($\$106,632.64 - \$25,000 = \$81,632.64$) or approximately \$40,816.32
25 awarded to each party, subject to the orders below.

26 d. Father's request for \$25,201 in Jeep settlement refund is GRANTED, the full balance of
27 which shall be paid from Mother's share of the funds.

28 e. Father's request for \$6,000 in business taxes is GRANTED, the full balance of which
29 shall be paid from Mother's share of the funds.

- 1 f. Father's request for \$22,115.24 for foreclosure cure reallocation is DENIED as Father
2 was previously reimbursed \$44,230.48 from the San Francisco home sale proceeds for
3 curing the mortgage default and preventing foreclosure. See FOAH filed 4/2/26.
- 4 g. Father's request for \$2,785.04 in reimbursement for unauthorized home repairs is
5 DENIED as the Court ordered the cost of home repairs divided equally.
- 6 h. Father's request for \$440.40 in mortgage late fee charges and \$3,843.36 in mortgage
7 delay damages is DENIED.
- 8 i. Father's request for reimbursement of \$1,663.10 for a Bank of America Cashier Check
9 issued in his name only is GRANTED, the full balance of which shall be paid from
10 Mother's share of the funds.
- 11 j. Counsel for Mother shall distribute the funds in accordance with the orders made herein
12 within 60 days of this hearing.
- 13 k. In so far as there remain issues related to the exchange of personal property; the parties
14 shall follow the process ordered at the prior 4/23/26 hearing. See 4/23/26 Minute Order.
- 15 l. The Court reserves jurisdiction over Father's request for \$18,784.79 in attorney's fees
16 sanctions and additional request for \$5,000 in fiduciary-duty sanctions and sets the issue
17 for hearing on 7/23/26. The parties shall submit updated Income and Expense Declaration
18 10 days prior to hearing and any supplemental declaration by 6/23/26 and reply by
19 7/10/26.

20 12) Thereafter, the 7/23/26 hearing was continued to 8/20/26.

21 13) On 7/10/26, Father filed a supplemental declaration regarding his request for \$18,784.79 in
22 attorney's fees sanctions and additional request for \$5,000 in fiduciary-duty sanctions. Father
23 states he has won all five ex parte applications brought in the matter (two by Father and three by
24 Mother).

25 14) On 7/10/26, Father filed an updated Income and Expense Declaration.

26 15) On 7/17/26, Mother filed a Reply Declaration in opposition to Father's request and in dispute of
27 Father's position. Mother asserts she does not have the ability to pay sanctions.

28 16) On 7/28/28, Mother filed an updated Income and Expense Declaration.
29

1 17) On 8/11/26, the Court denied Mother's Motion for Reconsideration of the Court's 5/19/26 order
2 (filed 6/17/26).

3 **B. Findings and Order**

4 1) Father's request for \$18,784.79 in attorney's fees sanctions under Family Code section 271 is
5 GRANTED. The Court finds Mother's conduct throughout this litigation frustrated the policy of
6 the law to promote settlement of litigation and, where possible, to reduce the cost of litigation by
7 encouraging cooperation between the parties and attorneys. The Court finds this award will not
8 impose an unreasonable financial burden on Mother. Mother shall pay Father this balance in full
9 by 9/20/26.

10 2) Father's request for \$5,000 in fiduciary-duty sanctions under Family Code section 1101 is
11 DENIED as Father did not provide sufficient evidence to prove his claim of breach of fiduciary
12 duty.

13 II. Request for Order filed 7/1/26:

14 **A. Procedural History**

15 1) On 7/1/26, Mother filed a Request for Order seeking: (a) a review hearing in 60 days to permit
16 completion of post-judgment financial discovery and review of unresolved financial issues; (b) an
17 order requiring the parties to continue complying with all prior orders regarding identification and
18 exchange of personal property located in the Reno and San Francisco properties; (c) \$25,000 in
19 Family Code section 2030 attorney's fees; and (d) reservation of jurisdiction over Jeep-related
20 issues.

21 2) On 8/7/26, Father filed a Notice of Limited Scope Representation indicating he has legal
22 representation for the 8/20/26 hearing.

23 3) On 8/7/26, Father filed a Responsive Declaration in opposition to Mother's Request for Order.
24 Father requests the Court deny Mother's request or, in the alternative, issue a protective order
25 limiting post-judgment discovery. Father seeks \$7,500 in sanctions pursuant to Family Code
26 section 271 and Code of Civil Procedure section 2023.030.

27 4) On 8/7/26, Father filed a Memorandum of Points and Authorities.

28 5) On 8/7/26, counsel for Father filed a declaration regarding meet and confer efforts.

29 **B. Findings and Order**

- 1) Mother's request for a review hearing in 60 days to permit completion of post-judgment financial discovery and review of unresolved financial issues is DENIED as there is no statutory basis for the Court to grant such relief; the discovery deadline and time to appeal entry of Judgment passed.
- 2) Furthermore, Family Code section 218 only permits post-judgment discovery on specific issues currently pending before the Court. There are no other motions currently pending before the Court.
- 3) Mother's request for \$25,000 in Family Code section 2030 attorney's fees is DENIED. The Court does not find that an award of \$25,000 in attorney's fees is reasonable or necessary here.
- 4) Father's request for 7,500 in sanctions pursuant to Family Code section 271 and Code of Civil Procedure section 2030 is GRANTED. The Court finds the filing of the instant Request for Order unnecessarily increased legal fees and constitutes misuse of the discovery process. The Court further finds this award will not impose an unreasonable financial burden on Mother. Mother shall pay this balance in full by 9/20/26.
- 5) All prior orders not in conflict with the orders made herein remain in full force and effect.
- 6) Counsel for Father shall prepare the Findings and Order After Hearing.
- 7) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SYLVANNA GAVIA CALLAWAY BRENNAN,	)	Case Number: FDI-23-798681
Petitioner	)	Hearing Date: August 20, 2026
VS.	)	Hearing Time: 9:00 AM
MATTHEW ANTHONY BRENNAN,	)	Department: 403
Respondent	)	Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF REQUEST FOR ORDER OF CHILD CUSTODY
AND/OR VISITATION CHANGE OF VISITATION (PARENTING TIME), CHILD SUPPORT,
WITHDRAW SOBERLINK REQUIREMENTS, PERMIT VACATION TO DISNEY WORLD, ORDER
REUNIFICATION THERAPY, REINSTATE SOCIAL MEDIA

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

TRACI PLAUT,

Petitioner

VS.

ZACHARY PLAUT,

Respondent

) Case Number: FDI-25-801768

) Hearing Date: August 20, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF TEMPORARY EMERGENCY ORDER, CHILD
CUSTODY, VISITATION (PARENTING TIME), SPOUSAL OR PARTNER SUPPORT, CHILD
SUPPORT, PROPERTY CONTROL, I REQUEST THAT OUR CHILD PRIMARILY RESIDE WITH
ME IN SAN FRANCISCO WHERE

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Traci Plaut (Mother) and Respondent Zachary Plaut (Father). They share one minor child: Zarah Marie Plaut (DOB: 07/12/12).
- 2) On March 30, 2026, Mother filed an ex parte Request for Order seeking pendente lite orders regarding child custody, visitation, guideline spousal support, guideline child support, property control of the 2632 26th Avenue, San Francisco home, and the minor child's residence (the minor child be permitted to reside with her in San Francisco). Mother concurrently filed an Income and Expense Declaration (file dated March 27, 2026). The Court denied Mother's request for emergency relief and set the matter for hearing on May 4, 2026 (on the Court's Readiness calendar).

- 1 3) On April 24, 2026, Father filed a Responsive Declaration wherein he asks this Court to order a
2 child custody evaluation and equal parenting plan. Father does not oppose Mother's requests for
3 support and property control; however, Father requests Mother be ordered to pay all her own
4 expenses as well as the mortgage and carrying costs on the property. Father states he is currently
5 paying all expenses. Father asks the Court to impute Mother at her previous salary as a researcher
6 at UCSF or minimum wage. Father concurrently filed an Income and Expense Declaration (file
7 dated April 24, 2026).
- 8 4) On April 29, 2026, Father filed "Respondent's Evidentiary Objections to Petitioner's Declaration
9 and Documents in Support of Her Request for Order and Additional Documents," which has been
10 read and considered by the Court.
- 11 5) On June 17, 2026, Father filed a "Respondent's Supplemental Responsive Declaration to
12 Petitioner's Request for Order," which has been read and considered by the Court. Father
13 attached a proposed XSpouse report to this pleading.
- 14 6) On June 25, 2026, the Court heard the matter and issued orders (see FOAH filed 07/17/26) and
15 set a review hearing on August 20, 2026 on the sole issue of "status of Family Code section 3111
16 evaluation."

17 **B. Findings and Order**

- 18 1) **The parties are ordered to appear.** As of August 15, 2026, the Court has not received update
19 or supplemental declarations from either party as to the status of the Family Code section 3111
20 evaluation. Without any input from the parties, the Court has no basis on which to issue a
21 Tentative Ruling. **The parties shall be prepared to inform the Court of the status of the**
22 **evaluation and provide argument regarding any additional requests of the Court.**
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALENA CALDER,

Petitioner

VS.

LUDWIG C. CALDER,

Respondent

) Case Number: FDV-25-818613

) Hearing Date: August 20, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT; ORDER TO SHOW CAUSE AND
AFFIDAVIT FOR CONTEMPT; ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT

TENTATIVE RULING

**The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by
Zoom video. If a party chooses to appear by video, that party must abide by the Notice and
Instructions for Remote Appearances in San Francisco Family Court set forth above.**

On for hearing on 8/20/26 are the following three motions:

- 1) Petitioner Alena Calder (Mother)'s Order to Show Cause and Affidavit for Contempt filed
2/18/26.
- 2) Mother's Order to Show Cause and Affidavit for Contempt filed 6/2/26.
- 3) Mother's Order to Show Cause and Affidavit for Contempt filed 7/23/26.

At the prior 7/7/26 hearing on Mother's Order to Show Cause and Affidavit for Contempt filed 2/18/26,
the Court appointed counsel, Andrew Quan, for Respondent Ludwig C. Calder (Father) nunc pro tunc to
6/3/26. Counsel for Father filed a demurrer and orally raised the objections contained therein at the
hearing. As such, the Court ordered the following: (a) Father's demurrer is sustained with leave to amend;
(b) Mother's counsel has 10 days to amend its citation and pleading (i.e., Mother's amended citation shall

1 be completed by 7/17/26); and (c) this matter is continued to 8/20/26. On 7/23/26, Mother amended her
2 Order to Show Cause and Affidavit for Contempt filed 2/18/26.

3
4 At the prior 7/14/26 hearing on Mother's Order to Show Cause and Affidavit for Contempt filed 6/2/26,
5 the Court continued the matter to 8/20/26 because there was no Proof of Service on file indicating Father
6 was served with Mother's Order to Show Cause and Affidavit for Contempt filed 6/2/26.

7
8 On 7/17/26 and 7/20/26, Mother filed a Proof of Electronic Service indicating the Order to Show Cause
9 and Affidavit for Contempt were served on counsel for Father by email on 7/17/26; however, neither
10 Proof of Electronic Service indicates which Order to Show Cause and Affidavit for Contempt was served.